

## Hari Chandra v. State of U.P. — 1958 Act recovery demand relegated to clause 6.5

Allahabad High Court · Division Bench · 26 February 2019 · Writ-C No. 6486 of 2019 · **Writ dismissed; petitioner relegated to clause 6.5 before the Executive Engineer.**

### HEADNOTE

A writ challenging a demand notice issued under s.3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 was dismissed. The Division Bench held that a consumer who disputes the demanded amount may approach the concerned Executive Engineer and avail the remedy under para 6.5 of the Electricity Supply Code, 2005, and that the writ therefore failed on the ground of alternative remedy.

### FACTUAL SUMMARY

Hari Chandra petitioned the Allahabad High Court against a demand notice dated 26 November 2018 issued to him under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958. Counsel for the petitioner, the State, and respondent 2 (the electricity undertaking) were heard. The petitioner sought to have the recovery demand quashed in writ jurisdiction rather than through the Supply Code billing-objection channel.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

alternative remedy for disputed recovery demand

#### HOLDING

Where a consumer disputes the amount demanded in a notice under s.3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, the available remedy is to approach the concerned Executive Engineer under para 6.5 of the Electricity Supply Code, 2005; a writ petition challenging that demand is dismissed on the ground of alternative remedy.

¶ 3-4

### PRINCIPLE TAGS

**clause-6.5-statutory-remedy** Para 6.5 of the Supply Code was treated as the statutory forum for disputing the amount in a s.3 recovery notice, and the writ was dismissed on that alternative-remedy ground. ¶ 3-4

**billing-objection-to-executive-engineer-under-6.5** The Court directed that any dispute as to the demanded amount is to be taken to the concerned Executive Engineer under para 6.5. ¶ 3

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — CORRECTNESS OF THE 26.11.2018 DEMAND NOTICE UNDER S.3 OF THE 1958 ACT

The writ was dismissed on alternative remedy; the amount demanded was not examined on merits. ¶ 2-4